

Compliance constraints & consent map

Every constraint the app is likely to hit, and an honest read on whether parental consent (your terms & conditions) actually clears it — or whether it needs something else. Build-first ordering; this is the list to work through.

■ Consent solves it ■ Consent helps, but needs more ■ Consent does NOT solve it		
Constraint	What it is	Does consent solve it?
Verifiable parental consent	Under-18s are 'children'; you must get and prove parental consent before any data is processed. A checkbox isn't enough — it must be verifiable (OTP, ID, etc.).	PARTLY. Consent is the right instrument, but it must be verifiable and recorded — not just a T&C tickbox.
Purpose limitation	Data may only be used for the purpose consented to. 'Research at IIT Delhi / NCAHT' must be stated as the purpose at collection.	YES — if the consent text names research + the recipient explicitly. Vague wording fails.
Third-party transfer to researchers	Sending video to NCAHT / IIT Delhi is a transfer to another party. Needs a stated basis + a data-sharing agreement between the parties.	PARTLY. Consent covers the parent's side; you still need a contract between app and institution.
Right to withdraw consent	A parent can withdraw at any time, and withdrawal must be as easy as giving it. Processing must stop on withdrawal.	YES, but it's a build requirement: you must ship a working withdraw + stop-processing flow.
Right to erasure (delete-everywhere)	Parent can demand deletion. Data must be erased on device AND in cloud AND, in principle, at the researcher's copy.	NO — consent doesn't remove this. You must build delete-across-device-cloud-and-recipient.
No harm / no profiling of children	The Act bans processing that may harm a child, and bans behavioural monitoring / profiling / targeted ads on children.	NO — cannot be consented away. A parent cannot authorise harm or profiling. Hard prohibition.
Data minimisation	Collect only what the purpose needs. Faces/names raise the bar; pseudonymised records lower it sharply.	NO — consent doesn't excuse over-collection. Solved by design (collect less / pseudonymise).
Storage location	Cross-border transfer of children's data adds risk. India-region storage neutralises it.	NO — an architecture choice, not a consent one. (Already handled: India-region Supabase.)
Security of stored data	You must take reasonable security measures. A breach of a children's-video corpus is the worst-case event.	NO — consent is irrelevant to security. Solved by engineering (access control, encryption).
Records of consent / accountability	You must be able to <i>prove</i> consent was obtained, for whom, when, and for what purpose.	PARTLY. Consent must be logged as data (who/when/scope), not just collected once.

Constraint	What it is	Does consent solve it?
Ethics / IRB approval	Research on minors with disabilities normally needs an institutional ethics-committee approval; its terms shape consent wording + retention.	NO — separate approval from the institution. Parental consent does not replace it.
Retention limits	Data kept only as long as the purpose needs; then deleted. Research may justify longer, but it must be stated.	PARTLY. Consent can state a retention period, but you must enforce deletion when it lapses.

How to read this

The green rows are the ones your build-first / solve-with-T&Cs plan handles cleanly: write the right consent text and you're done. The amber rows are consent-led but need a small build or a record-keeping step alongside the wording — consent is necessary but not sufficient. The red rows are the ones to flag now, because **no amount of consent text removes them**: a parent cannot consent to harm, profiling, over-collection, or a lack of security, and erasure and ethics approval are obligations that exist regardless of what the T&Cs say.

Practical upshot: the red rows are mostly **design and engineering** decisions, and they're cheapest to honour if they're baked into the data model from the first version — specifically, pseudonymising records (a research ID, not the child's name/photo, on the stored record) collapses several red rows at once. That's a build decision you'd want to make before writing upload code, not retrofit after.

Not legal advice. This is an engineering planning map of the constraints under India's DPDP Act 2023 + Rules 2025 as they apply to a children's-data app; the exemption Schedule is still pending, so it assumes full consent obligations apply. Have the actual consent text and the app-to-institution data-sharing agreement reviewed by someone qualified before any real child data is collected.